



File No.: EXP202408778

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on April 22, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against BANCO SANTANDER, S.A. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that on January 4, 2024, they sent an email to BANCO SANTANDER, S.A., the respondent, requesting access to their personal data.

The complainant further states that on February 2, 2024, they received a response from the respondent indicating that, regarding their request, considering that extracting the information requires contacting suppliers or other departments, a timeframe is needed that does not allow for a timely response without utilizing the extension provided for in the current data protection regulations, for which reason they indicate that they will respond within a maximum period of three months from the day the request was received.

Having elapsed the maximum established period, the complainant alleges that they still have not received a response to their request for access to their personal data exercised against the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on July 22, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten business days, they could present any allegations they deemed appropriate.

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The respondent submitted a written response on September 26, 2024, confirming the sending of the documentation requested by the complainant.

FOURTH: After examining the document submitted by the respondent, it was forwarded to the complainant, so that within ten business days, they could formulate any allegations they deemed appropriate, summarizing the following allegations:

"The financial entity Banco Santander has only provided the current contact data, NOT THE COMPLETE PERSONAL DATA they have and process regarding my client, in addition to some contract numbers after almost seven months since the exercise of the right of access. Additionally, we understand that the content of the message does not meet the information requirements derived from Article 15 of Regulation (EU) 2016/679 regarding the right of access to data, without confirming whether or not personal data concerning them is being processed in their request, not specifying the categories of data processed regarding A.A.A., as well as their purposes, and not providing copies of the same."

"Banco Santander has proceeded to respond to my exercise of the right of access 6 months later,

without satisfying the claims of this party and after receiving the complaint from this Body.

That, from Banco Santander, neither the corresponding copies nor extracts of the documentation containing my client's personal data are sent, nor do they comply with the requirements derived from Article 15 of the GDPR.

That Banco Santander excuses itself for the lack of specification in A.A.A.'s request, being quite clear what data they wished to access.

That, if as Banco Santander states, there were difficulties in searching for the data, they could have requested the specification from the interested party from the very beginning.

That Banco Santander did not provide in its response all the available documentation containing A.A.A.'s personal data.

That there are well-founded suspicions that this is all due to an obstruction by Banco Santander to prevent our client from being aware of any improper use of their data.

That the incorrect exercise of the right of access to the data would hinder them from exercising future claims in order to defend the fundamental rights of A.A.A.."

FIFTH: After examining the document submitted by the respondent, it was forwarded to the complainant, so that within ten business days, they could formulate any allegations they deemed appropriate.

The respondent considers that the right of access of the complainant has been satisfied with the response sent on July 15, 2024, with all the documentation available.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not allow for the satisfaction of the complainant's claims. Consequently, on July 22, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the data subject's rights under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to provide reasons if it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

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IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the data subject to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

V

Conclusion

We will begin by stating that this claim will only consider whether the requested right, the right of access, has been fulfilled or not. The other issues raised by the claimant and the respondent regarding other matters will not be taken into account in this resolution.

In the case analyzed here, the claimant exercised their right of access and, after the period established in the aforementioned regulations, their request received the legally required response, but the claimant stated at the time that the access was incomplete, thus requesting full access.

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During the processing of this procedure, the entity being claimed has responded to this Agency and to the claiming party, demonstrating that it has complied with the request made by the claiming party by sending the required response to their request. The claiming party has provided the communication sent to the interested party in response to the right, which is considered incomplete by the claiming party.

This Agency sent a letter to the entity being claimed in which the claiming party reiterated that access was incomplete. The entity being claimed reiterates that it has granted access to the claimant and sent all the documentation it possesses.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in cases where there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In this regard, it should be clarified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to uphold this claim on formal grounds due to the response being issued late, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the claim made by A.A.A. against BANCO SANTANDER, S.A. However, it is not appropriate to issue a new certification by the entity being claimed, as the response was issued late, without requiring the responsible party to carry out additional actions.

SECOND: NOTIFY this resolution to A.A.A. and to BANCO SANTANDER, S.A.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public

once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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